both shared an equally important position in the constitutional scheme, in support of his decision to uphold Article 31C in the Minerva Mills judgement. Justice Chandrachud had noted that 'the basic object of conferring freedoms on individuals [through fundamental rights]' was to achieve the objectives set out in the directive principles.[31] Parliament was inspired, said Justice Bhagwati, by the same philosophy in making the constitutional amendment as 'the noble philosophy eloquently expressed in highly inspiring and evocative words, full of passion and feeling' by Justice Chandrachud in the Kesavananda judgement.[32] It had long been speculated that Justice Bhagwati's rancour arose from Justice Chandrachud's prior elevation to the Supreme Court (resulting in a long tenure as chief justice), even though Bhagwati had been appointed a high court judge earlier than his colleague.

Justice Bhagwati himself received a fair share of criticism both before and after the decision in the Minerva Mills case was pronounced. It transpired that after the hearing had concluded and while the case was still awaiting judgement, Justice Bhagwati wrote an effusive letter congratulating Indira Gandhi on her election victory, praising her 'iron will', 'uncanny insight and dynamic vision' and her 'heart which is identified with the misery of the poor and the weak'.[33] The criticism of failing to consult colleagues came full circle. Just as Justice Chandrachud had complained about the lack of discussion among the judges in the Kesavananda case and was at the receiving end of the same criticism in the Minerva Mills case, Justice Bhagwati made the same complaint in the Minerva Mills case and was the recipient of it in a prominent case involving judicial appointments a few years later.[34]

Even as lawyers and political commentators lamented the state of the 'bench divided',[35] the Congress government was predictably displeased with the majority decision in the Minerva Mills case. After all, the way in which the case played out was that the Congress government's amendments to the Constitution were struck down, while the Janata government's amendments remained unaffected. Law minister and MP from Secunderabad, P. Shiv Shanker, criticized the judgement at every available opportunity. On one